

alternative date, the Court intends to set the matter on **Monday, March 22, 2027, at 8:30 a.m. in Department 64** for a hearing on compliance. Prior to the hearing, Plaintiff is expected to provide evidence that the settlement checks were mailed, any uncashed monies were distributed to the California Controller's Unclaimed Property Fund, and that all fees and costs have been paid as outlined above. Evidence should be filed no later than March 15, 2027.

JANE MJ DOE VS. SABET, MD, ET AL.

CASE NUMBER: 23CV-0203865

Tentative Ruling on Motion to Enter Judgment: Plaintiff moves for entry of judgment pursuant to Code of Civil Procedure section 664.6. The parties settled this matter at the Mandatory Settlement Conference held May 4, 2026. The Settlement Agreement was executed June 4, 2026. Defendant has made a partial payment under the terms of the Agreement and has failed to timely make the remaining payment. The Motion has been properly noticed and is unopposed.

Merits: CCP § 664.6(a) provides that if parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement.

Here, the parties stipulated to settlement orally before the court on May 4, 2026. Thereafter, the settlement was reduced to writing and signed by the parties on June 4, 2026. The signed writing is attached as Exhibit 2 to the Declaration of Steward Altemus. As of the August 21, 2026 filing of this Motion, a partial payment has been made. Plaintiff granted a 30 day extension to the payment due date, but Defendant has not timely paid the remaining balance. Plaintiff is entitled to entry of judgment on the terms of the Settlement Agreement for the outstanding balance plus interest.

The motion is **GRANTED**. The proposed order and judgment will be executed.

LUCERO VS. ADAMS

CASE NUMBER: 26CV-0211131

Tentative Ruling on Demurrer: Defendant Daniel Adams, individually and dba Daniel Adams Construction demurs to Plaintiff Dolores Lucero's Complaint pursuant to Code of Civil Procedure section 430.10(e) on the grounds that it is barred by res judicata. Plaintiff opposes the Demurrer.

Meet and Confer: CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Daniel Adams establishes compliance with the meet and confer requirements.

Request for Judicial Notice: Defendant's requests that the Court take judicial notice of the following is GRANTED, Pursuant to Evidence Code 452(d).

1. Ruling dated July 10, 2024 and Notice of Entry of Judgment filed July 12, 2024 in Small Claims matter of *Lucero v. Adams*, Shasta County Superior Court Case NO. 24CL-00078.
2. Notice of Entry of Judgment – Small Claims Appeal dated August 26, 2024 in *Lucero v. Adams*.
3. Order denying Motion to Vacate Judgment dated September 17, 2024.